

Court No. - 3

Case :- WRIT - C No. - 8646 of 2024

Petitioner :- Rampal Singh Yadav

Respondent :- The Chairman U.P. Power Corporation Ltd. Lko And 4 Others

Counsel for Petitioner :- Prabhu Sharan, Divyani Mishra, Shivani Soni

Counsel for Respondent :- Amit Kumar Dwivedi

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Brij Raj Singh, J.

Heard learned counsel for the petitioner and Sri Amit Kumar Dwivedi, learned counsel appearing for the respondents.

This petition has been filed with the following main prayers:-

(i) Issue a writ, order or direction in the nature of certiorari thereby quashing the impugned Notice dated 08.08.2024 issued by the opp. party no.4 under section 126 of the Electricity Act in pursuant to the Checking Report no.4616/04 dated 02.08.2024 by which the petitioner is directed to deposit Rs.75,744/- (Rupees Seventy Five Thousand Seven Hundred Fourty Four only) towards the alleged unauthorized use of Electricity for LMV-9 (Temporary Connection) against the LMV-1 (Domestic Connection) as contained in Annexure no.1 to this writ petition.

(ii) Issue a writ, order or direction in the nature of mandamus commanding and directing the opposite party no.4 to pass final Assessment Order after affording proper opportunity of hearing to the petitioner and keeping in view the fact that the re- construction of the house was started after 12.04.2024 and the petitioner had not used the electricity dishonestly hence a suitable assessment commensurate with the Act should be done as per Clause 6.8 of the Electricity Supply Code (Fourth Amendment). 2005.

(iii) Issue a writ, order or direction in the nature of mandamus commanding and directing the opposite parties to forthwith connect the Electricity Line and supply the Electricity for Domestic use on payment of usual charges within such time bound period as may be deemed fit and fixed by this Hon'ble Court."

It appears that the premises of the petitioner had arrears and provisional assessment notice was given to him on 08.08.2024 with regard to Rs.75,744/- determined provisionally. The petitioner has submitted his reply but no final assessment has yet been issued.

The writ petition is **disposed of** with the direction to opposite party no.4 to take appropriate decision after considering the representation/reply of the petitioner to the show cause notice on 02.09.2024 within a period of two weeks from the date a certified copy of this order is produced before him.

If the petitioner moves an application praying for his domestic electricity connection to opposite party no.4 alongwith copy of this order, opposite party no.4 shall consider the same sympathetically and pass appropriate order thereon.

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(Brij Raj Singh, J.) (Sangeeta Chandra,J.)

Order Date :- 3.10.2024

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